

Suleman v. State of U.P. — Para 6.8 objection to revenue assessment notice

High Court of Judicature at Allahabad · Division Bench · 8 August 2022 · WRIT - C No. 20589 of 2022 · **Writ disposed; Para 6.8 objection liberty with eight-week stay**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a writ challenging a revenue assessment notice after the distribution licensee stated that an objection could be filed and would be decided in a time-bound manner. The consumer was given liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks, with coercive action stayed for eight weeks or until disposal, whichever is earlier.

FACTUAL SUMMARY

Suleman filed a writ petition in the Allahabad High Court seeking certiorari to quash a revenue assessment notice dated 5 October 2021 and mandamus directing the distribution licensee to issue a fresh assessment bill after opportunity of hearing. Counsel for the power distribution corporation stated on instructions that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period. The Court recorded that statement.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the assessing authority (respondent no. 3) within four weeks. If submitted in time, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action on the impugned demand or notice is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court declined merits review of the revenue assessment notice and relegated the consumer to the Para 6.8 objection, to be decided after hearing, treating that statutory path as the adequate remedy. ¶ 4

assessment-6.8-alternate-remedy Challenge to the assessment demand was not decided in writ; the consumer was directed to the Code 6.8 objection with a short stay of coercive recovery pending that decision. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE REVENUE ASSESSMENT NOTICE DATED 05.10.2021 AND ENTITLEMENT TO A FRESH ASSESSMENT BILL AFTER HEARING

Writ disposed without opinion on merits; relegated to Para 6.8 objection. ¶ 4